

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 23, 2018

Honorable James W. Hollman
Judge of the Superior Court
County of Tulare
221 S. Mooney Boulevard, Room 303
Visalia, CA 93291

Re: Gonzalez, Rafael
CDC No.: AL4701
Case No.: VCF247994A
Date of Sentence: 05/10/2012

Dear Honorable James W. Hollman:

The purpose of this letter is to provide the court with authority to resentence Rafael Gonzalez pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Gonzalez was sentenced in 2012, and was convicted of section 245, subdivision (a)(1), Assault with a deadly weapon other than a firearm. The trial court sentenced inmate Gonzalez on 05/10/2012. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Gonzalez's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Gonzalez's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Bret D. Hillman, Tulare County Presiding Judge
Tulare District Attorney
Public Defender

AL 4701

FELONY ABSTRACT OF JUDGMENT - DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM
[Not to be used for multiple count convictions or for 1/3 consecutive sentences]

CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF Tulare			
PEOPLE OF THE STATE OF CALIFORNIA vs DEFENDANT: Rafael Gonzalez		DOB: 03-12-92	CASE NUMBER VCF247994A
AKA CII NO. A25136061 BOOKING NO.: ☐ NOT PRESENT			
FELONY ABSTRACT OF JUDGMENT ☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT		☐ AMENDED ABSTRACT	
DATE OF HEARING 05-10-12	DEPT. NO. 3	JUDGE James W. Hollman	
CLERK Jessica Uribe	REPORTER Connie McAlister #4376	PROBATION NO. OR PROBATION OFFICER 574980 ☐ IMMEDIATE SENTENCING	
COUNSEL FOR PEOPLE Kerri Lopez, Deputy District Attorney		COUNSEL FOR DEFENDANT Eric Hamilton, Conflict Counsel ☒ APPTD.	

1. Defendant was convicted of the commission of the following felony:

COUNT	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	TIME IMPOSED	
						JURY	COURT	PLEA		YRS.	MOS.
1	PC	245(a)(1)	Assault with a deadly weapon other than a firearm	2007	03-06-12			X	U	4	00

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL	
1	PC12022.7	3	PC186.22(b)(1)	5			8	00

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL	

4. Defendant sentenced: ☐ to prison per PC 1170(a) or (h)(3) ☐ to county jail per PC 1170(h)(1) or (2) ☐ per PC 667(b)=(i) or PC 1170.12 (two strikes) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. Defendant was ordered to report to local Parole Office upon release.

5. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

Restitution Fine(s): \$ 500 per PC 1202.4(b) forthwith per PC 2085.5; \$ 500 per PC 1202.45 suspended unless parole is revoked.
\$ _____ per PC 1202.44 is now due, probation having been revoked.

Restitution per PC 1202.4(f): ☐ \$ _____ / ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
☐ *Victim name(s), if known, and amount breakdown in item 8 below. ☐ *Victim name(s) in probation officer's report.

Fine(s): \$ _____ per PC 1202.5. \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive

☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

☒ Court Security Fee of \$ 40 per PC 1465.8. ☒ Criminal Conviction Assessment of \$ 30 per GC 70373.

6. TESTING: a. ☒ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 c. ☐ other (specify): _____

7. IMMEDIATE SENTENCE: ☐ Probation to prepare and submit a post-sentence report to CDCR per PC 1203c. Def't's Race/Nat'l Origin Hispanic

8. Other orders (specify): Prohibited firearm; Restitution to victim, V.S., remain open pending any future counseling and/or medical expenses; Restitution to Victim's Compensation Government Claims Board remain open; SAID TERM IN THIS CASE TO RUN CONCURRENT TO TIME IMPOSED IN CASE VCF236964A

9. TOTAL TIME IMPOSED EXCLUDING COUNTY JAIL TERM: 12 00

10. ☐ MANDATORY SUPERVISION: Execution of a portion of the total jail time imposed in item 9 is suspended and deemed a period of mandatory supervision under PC 1170(h)(5)(B) as follows: Suspended portion: _____ Served forthwith: _____

11. ☐ This sentence is to run concurrent with (specify): _____

12. REGISTRATION REQUIREMENT: ☒ per (specify code section): PC186.30

13. Execution of sentence imposed: a. ☒ at initial sentencing hearing. b. ☐ at resentencing per decision on appeal. c. ☐ after revocation of probation. d. ☐ at resentencing per recall of commitment. (PC 1170(d).) e. ☐ other (specify): _____

DATE SENTENCE PROUNOUNCED 05-10-12	CREDIT FOR TIME SPENT IN CUSTODY 792	TOTAL DAYS INCLUDING: 792	ACTUAL LOCAL TIME 689	LOCAL CONDUCT CREDITS 103	☐ 4019 ☒ 2933.1	TIME SERVED IN STATE INSTITUTION: DMH ☐ CDCR ☐ CRC ☐
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15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☐ county jail ☐ Other (specify): _____

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE: Jessica Uribe 05-15-12

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1203.0 for determinate sentences. Attachments may be used but must be referred to in this document.